

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Hart	Team: Team # 4	CCRB Case #: 201205279	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 04/23/2012 6:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/23/2013	Precinct: 113
Date/Time CV Reported Mon, 04/23/2012 8:51 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 04/23/2012 8:51 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Mark Sinatra	28505	944174	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Brandi	20550	943018	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mark Sinatra	Force: PO Mark Sinatra used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Mark Sinatra	Abuse: PO Mark Sinatra threatened to arrest § 87(2)(b)	B . Unsubstantiated

Case Summary

On April 23, 2012, § 87(2)(b) filed this complaint with the CCRB via the Call processing System. On April 23, 2012, at approximately 6:30PM, PO Daniel Brandi and PO Mark Sinatra of the 113th Precinct responded to a radio run of criminal mischief in progress at § 87(2)(b) in Queens. § 87(2)(b)'s boyfriend, was arrested and transported to the 113th Precinct stationhouse. The following allegations resulted:

- **Allegation A) Force: PO Mark Sinatra used physical force against** § 87(2)(b)
- **Allegation B) Abuse: PO Mark Sinatra threatened to arrest** § 87(2)(b)

§ 87(2)(g)

it is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Investigator Walsh offered mediation to § 87(2)(b) during her initial phone statement and during her interview at the CCRB and she declined. Upon Investigator Walsh's resignation from the CCRB, this case was reassigned to Investigator Hart on January 16, 2013.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *is a Hispanic female* § 87(2)(b) *with black hair and brown eyes.* § 87(2)(b) was § 87(2)(b) at the time of incident.

CCRB Testimony

On April 27, 2012, § 87(2)(b) was contacted by the CCRB (enc.B3) and provided a phone statement. On May 7, 2012, § 87(2)(b) was interviewed at the CCRB (enc.B4-B8). § 87(2)(b)'s statements were consistent with each other. On April 23, 2012 at 6:30PM, § 87(2)(b) and her boyfriend, § 87(2)(b) were in their § 87(2)(b) floor apartment. § 87(2)(b) and § 87(2)(b) live on the § 87(2)(b) floor of a private house, the apartment on the ground floor has its own front door within a shared foyer. Two police officers knocked on the door of their apartment. PO Daniel Brandi is described as a white male, 6'1" tall, slim build, light colored hair, in his early 30's. PO Mark Sinatra is described as a white male, 5'5" tall, 160 pounds, bald, in his mid-30's. PO Brandi and PO Sinatra were identified by the CCRB. PO Sinatra and PO Brandi had responded to a call from § 87(2)(b)'s downstairs neighbor, § 87(2)(b) who claimed that 3 of the tires on her husband's vehicle had been slashed, and stated that § 87(2)(b) was the culprit. § 87(2)(b) answered the door and asked that neighbor, who was outside, what was going on. PO Sinatra told him to put his hands behind his back, and that he was under arrest. When § 87(2)(b) heard this happening, she went to the door and asked what was going on, and protested to the officers that she and § 87(2)(b) had been inside since she had brought her children home from school earlier that afternoon. PO Sinatra told her to go back inside her apartment. § 87(2)(b) stayed inside in the doorway. § 87(2)(b) was led away from the door and to the patrol car. After § 87(2)(b) was taken to the patrol car, PO Sinatra came back from the patrol car to where § 87(2)(b) was standing, now just outside the doorway. She was not wearing shoes, so she didn't feel comfortable going out any further. § 87(2)(b) again asked what was going on, and verbally protested § 87(2)(b)'s arrest. PO Sinatra pushed § 87(2)(b) in her left shoulder with his right hand, back towards the doorway. When she was pushed, § 87(2)(b) did not fall, or hit anything, or sustain any injuries. § 87(2)(b) told PO Sinatra not to put his hands on her. PO Sinatra asked

§ 87(2)(b) what she was going to do about it, and told § 87(2)(b) to be quiet and go back inside before they arrested her, too. PO Sinatra went back to the patrol car, and the officers left with § 87(2)(b). Shortly after § 87(2)(b) was arrested, § 87(2)(b) called 911 (enc. D10) to report that § 87(2)(b) had assaulted her with a vase. Officers who responded to this call did not take any action because they did not believe her version of events. During the interview, § 87(2)(b) § 87(2)(g) admitted that PO Brandi witnessed her break the vase during the arrest of § 87(2)(b).

Witness: § 87(2)(b)

- § 87(2)(b) is a Hispanic male § 87(2)(b) with black hair and hazel eyes. § 87(2)(b) was § 87(2)(b) at the time of the incident.

CCRB Statement

On May 31, 2012, § 87(2)(b) was interviewed at the CCRB (enc. B10-B14). § 87(2)(g)
§ 87(2)(b) PO Sinatra asked § 87(2)(b) to step into the foyer where he was placed under arrest. During this interaction, § 87(2)(b) entered the foyer where the officers and § 87(2)(b) were standing. § 87(2)(b) protested that § 87(2)(b) was lying and that § 87(2)(b) had done nothing wrong. § 87(2)(b) was not raising her voice but was crying. As PO Brandi escorted § 87(2)(b) to a marked RMP, § 87(2)(b) attempted to follow them and continued her verbal protest of § 87(2)(b)'s arrest. As § 87(2)(b) walked toward the exit of the building, PO Sinatra told her to step back and pushed § 87(2)(b) with both hands in her upper chest and shoulders. § 87(2)(b) was in handcuffs in front of the doorway of the residence when the physical contact between § 87(2)(b) and PO Sinatra occurred. § 87(2)(b) and her husband, § 87(2)(b) both witnessed PO Sinatra push § 87(2)(b). § 87(2)(b) § 87(2)(b) protested being pushed and protested § 87(2)(b)'s arrest and was told by PO Sinatra that they had to arrest § 87(2)(b). PO Sinatra then asked PO Brandi to ask § 87(2)(b) to calm § 87(2)(b) down. PO Brandi rolled down the window of the RMP and allowed § 87(2)(b) to reassure § 87(2)(b). § 87(2)(b) did not say anything about either officer threatening to arrest § 87(2)(b).

Attempts to Contact Civilians

Investigator Hart made contact with § 87(2)(b) on January 31, 2013. § 87(2)(b) provided a phone statement but did not wish to give a statement in person. § 87(2)(b) did not witness the entire incident, but did not see either officer make physical contact with § 87(2)(b) or threaten her with arrest.

NYPD Statements:

Subject Officer: PO. MARK SINATRA

- PO Sinatra is a Caucasian male § 87(2)(b) with a bald head and brown eyes. PO Sinatra was § 87(2)(b) at the time of the incident.
- On April 23, 2012, PO Sinatra worked from 1500 to 2335 hours and was assigned to the 113th Precinct Patrol Sectors D, E, F, and J with PO Daniel Brandi. He was in uniform and assigned to a marked RMP #3824.

Memo Book

PO Sinatra had a memo book entry regarding this incident. At 1851, PO Brandi had one arrest of a male for § 87(2)(b) who was transported to the station house. (enc. C5-C7)

CCRB Testimony

PO Mark Sinatra was interviewed by the CCRB on September 4, 2012 (enc. C1-C2). PO Sinatra had been promoted to Sergeant at the time of his interview. His statement is summarized below. At 6:34PM on April 23, 2012, PO Sinatra and PO Brandi responded to a radio run of criminal mischief in progress at [REDACTED], in Queens. Upon arriving at the location, PO Sinatra and PO Brandi were admitted to the foyer of [REDACTED] by the unidentified husband of [REDACTED]. PO Sinatra described the residence as a two-family house with one outside door, and a foyer that has two doors that allow access to each respective apartment in the building. PO Sinatra and PO Brandi spoke to the Smiths who stated that they witnessed [REDACTED] slash the tires of their vehicle. The officers then knocked on [REDACTED]'s door and informed him of the complaint against him. [REDACTED] complied with police directions and was placed under arrest. PO Sinatra did not recall [REDACTED] making any statements at the time of his arrest to him or PO Brandi, nor did PO Sinatra recall where [REDACTED] was handcuffed. Once [REDACTED] was placed under arrest, [REDACTED] began her interaction with PO Sinatra and PO Brandi. [REDACTED] became "irate" and "screamed and cursed" at the officers though PO Sinatra did not recall what [REDACTED] said. PO Sinatra explained to [REDACTED] why [REDACTED] was under arrest and commanded her to calm down an unspecified number of times and she did not comply. [REDACTED] did not attempt to follow the officers to the RMP where [REDACTED] was placed, nor did PO Sinatra have any physical contact with her. Based on her actions, [REDACTED] could have been placed under arrest but PO Sinatra understood why she was upset and did not threaten to arrest her. PO Sinatra and PO Brandi then left the location with [REDACTED] in custody. They were at the location for about 20 minutes.

Witness Officer: PO DANIEL BRANDI

- *PO Brandi is a Caucasian male [REDACTED] with brown hair and green eyes. PO Brandi was [REDACTED] old at the time of the incident.*
- *On April 23, 2012, PO Brandi worked from 1500 to 2335 hours and was assigned to 113th Precinct Patrol Sectors D, E, F, and J with PO Mark Sinatra. He was in uniform and assigned to a marked RMP #3824.*

Memo Book

PO Brandi had a memo book entry regarding this incident. At 1850, PO Brandi had one arrest of [REDACTED] of [REDACTED] for [REDACTED]. (enc. C8-C9)

Arrest Report

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

CCRB Testimony

PO Daniel Brandi was interviewed at the CCRB on September 19, 2012 (enc. C3-C4). His statement is summarized below. [REDACTED]. At 6:35PM on April 23, 2012, PO Brandi and PO Sinatra responded to a radio run of criminal mischief at [REDACTED] in Queens. PO Brandi and PO Sinatra knocked on the door of the second floor apartment. [REDACTED] answered the door and engaged in a brief conversation with PO Brandi in which [REDACTED] stated that he was having ongoing problems with his downstairs neighbors but denied that he had slashed their tires. The officers spoke to [REDACTED] for about two minutes before placing him under arrest. [REDACTED] arrived at

some point during this interaction but was not present when § 87(2)(b) initially answered the door. § 87(2)(b) was visibly upset and was described as, “angry and very emotional” though PO Brandi did not recall what § 87(2)(b) said exactly or if she used obscene language. As PO Brandi and PO Sinatra were escorting § 87(2)(b) to the RMP, § 87(2)(b) exited her apartment and threw a small flower vase at the officers. PO Brandi and PO Sinatra were on the sidewalk, with their backs to the house, when the vase was thrown. PO Brandi did not see § 87(2)(b) throw anything but heard the vase smash and saw that § 87(2)(b) was the only one in the vicinity. PO Brandi and PO Sinatra returned to the foyer of § 87(2)(b)’s residence and engaged her in a brief conversation in which they told her to go upstairs. Neither PO Brandi nor PO Sinatra had any physical contact with § 87(2)(b) at any point during the incident. Based on her actions, § 87(2)(b) could have been placed under arrest but at no point did PO Brandi or PO Sinatra threaten to arrest her. § 87(2)(b) did not have any interactions with § 87(2)(b) after she threw the vase as he was already in the RMP. PO Brandi and PO Sinatra then left the area with § 87(2)(b) in custody.

NYPD Documents:

SPRINT

A SPRINT printout reflects that a 911 call was placed by § 87(2)(b) at 6:50PM (enc. D10). § 87(2)(b) reported that she was struck on the head with a plant holder by a perpetrator who lived on the first floor of her residence. The perpetrator is described as a Black female, about 29-years-old, 5’9” tall, wearing a black jacket and a leopard print top. Officers were dispatched to respond to an assault in progress.

911 Communications Recording

§ 87(2)(b) called 911 at 1832 to report that she saw her landlord, § 87(2)(b) slash the tires of her vehicle at approximately 1805 (enc. D11). The call ended at 1835. § 87(2)(b) called 911 at 1850 to request police assistance (enc. D12). § 87(2)(b) stated that § 87(2)(b) hit her on the head with a vase in the foyer of her apartment. § 87(2)(b) then gave a description of § 87(2)(b) and requested an ambulance.

Arrest for Incident and Disposition

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians Criminal History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■ § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■ § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■ § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

This is the first CCRB complaint filed by § 87(2)(b) (enc. A1)

Subject Officer(s) CCRB History

PO Sinatra has been a member of the service for 6 years and there are no substantiated CCRB allegations against him (enc. A2).

Conclusion

Identification of Subject Officer

PO Sinatra acknowledged interacting with § 87(2)(b) described the subject officer as a Caucasian male with a bald head who was shorter than the witness officer. § 87(2)(b) § 87(2)(b)'s descriptions of PO Sinatra and PO Brandi match the available pedigree information.

Investigative Findings and Recommendations

- **Allegation A) Force: PO Mark Sinatra used physical force against** § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both alleged that PO Sinatra pushed § 87(2)(b) § 87(2)(b) alleged that PO Sinatra pushed her with his right hand on her left shoulder while § 87(2)(b) alleged that PO Sinatra pushed her with both hands on § 87(2)(b)'s upper chest area. § 87(2)(b) § 87(2)(b) did not witness either officer make physical contact with § 87(2)(b) PO Sinatra denied this allegation and denied making any physical contact with § 87(2)(b) during the incident. PO Brandi did not witness PO Sinatra make any physical contact with § 87(2)(b) during the incident. § 87(2)(b) did not sustain any injuries as a result of her alleged physical contact with PO Sinatra. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore it is recommended that the allegation of physical force against PO Sinatra be closed as **unsubstantiated**.

- **Allegation B) Abuse: PO Mark Sinatra threatened to arrest** § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both alleged that PO Sinatra threatened to arrest § 87(2)(b) § 87(2)(b) did not witness either officer threaten to arrest § 87(2)(b) PO Sinatra denied that he threatened § 87(2)(b) with arrest. Likewise, PO Brandi did not witness PO Sinatra threaten § 87(2)(b) with arrest. Though neither PO Sinatra nor PO Brandi admitted to threatening to arrest § 87(2)(b) both officers stated that § 87(2)(b) could have been arrested based on her behavior at the time of § 87(2)(b)'s arrest. Furthermore, PO Brandi stated that § 87(2)(b) § 87(2)(b) threw a vase at the officers as they led § 87(2)(b) to the RMP, § 87(2)(g) § 87(2)(b) In her statement to the CCRB on April 27, 2012, § 87(2)(b) claimed that she smashed a vase on the floor of her foyer as an expression of frustration. In a 911 call placed by § 87(2)(b) less than an hour after § 87(2)(b)'s arrest on the night of the incident, § 87(2)(b) stated that § 87(2)(b) broke a vase over her head and asked for an ambulance to treat her injuries.

It is undisputed that § 87(2)(b) angrily protested § 87(2)(b)'s arrest and attempted to interfere with the officers as they effected the arrest of § 87(2)(b) Both PO Sinatra and PO Brandi stated that § 87(2)(b) became irate when § 87(2)(b) was placed under arrest and did not comply when she was repeatedly ordered to calm down. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Both PO Brandi and PO Sinatra said that they did not arrest § 87(2)(b) because they understood why she was upset. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g) . Therefore it is recommended that the allegation be closed as **unsubstantiated**.

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date